

the Chairman of the Scientific Authority, Mr. Harold O'Connor of the Department of the Interior; behind me and to the left, Dr. Joe Held of the Department of Health, Education, and Welfare; immediately behind me, Dr. Edward Ayensu, representing the Smithsonian Institution; and to my immediate left is Dr. Peter Escherich, who is Staff Zoologist for the Scientific Authority.

Mr. BREAUX. All right. Let us see if they can all come up and sit at the table. They are all voting and debating members of ESSA, and we want them to debate and participate in the hearing this morning. Just pull up your chairs, gentlemen, if you would, and join the panel.

All right. Dr. Brown, I think you have a prepared statement; go ahead, and we will be pleased to receive that.

STATEMENT OF WILLIAM Y. BROWN, EXECUTIVE SECRETARY, ENDANGERED SPECIES SCIENTIFIC AUTHORITY, ACCOMPANIED BY R. V. MILLER, DEPARTMENT OF COMMERCE; JOE R. HELD, DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE; JAMES T. CALLAHAN, NATIONAL SCIENCE FOUNDATION; EDWARD AYENSU, REPRESENTING THE SMITHSONIAN INSTITUTE; PETER ESCHERICH, STAFF ZOOLOGIST, ENDANGERED SPECIES SCIENTIFIC AUTHORITY; AND HAROLD O'CONNOR, DEPARTMENT OF THE INTERIOR, CHAIRMAN, ENDANGERED SPECIES SCIENTIFIC AUTHORITY

Dr. BROWN. Mr. Chairman, thank you for this opportunity to testify before the Subcommittee on Fisheries and Wildlife Conservation and the Environment. This testimony focuses on our operating procedures and proposed findings on alligator exports, as you have requested.

The Scientific Authority was established on April 13, 1976, by Executive Order 11911, and was designated the scientific authority of the United States for the CITES. The designation of a CITES scientific authority by the President was mandated by section 8 of the Endangered Species Act of 1973. This directive of the Endangered Species Act was itself intended to satisfy the requirement of the CITES itself that parties designate management authorities and scientific authorities.

The ESSA is composed of representatives of the heads of six Federal agencies and the Secretary of the Smithsonian Institution. These are listed below in my testimony, and I will not read it.

Although the ESSA members represent agency heads, the members have been given the liberty on most matters to exercise their independent scientific judgment, irrespective of any position that the agencies may formally develop. This procedure allows the ESSA to function as a scientific body and without the undue dealty that would occur if formal agency clearances were required for actions. Of course, agency heads are free to instruct their representatives if they so choose, or to replace their current representatives if they are unhappy with their performances.

Executive Order 11911 directs the Secretary of the Interior to designate an Executive Secretary of the ESSA and to provide necessary staff and administrative support. The present Executive Secretary and staff are as follows—I will not read the names; there are six of us.

The ESSA is funded through the U.S. Fish and Wildlife Service, primarily by appropriations under section 15 of the Endangered Species Act of 1973.

The ESSA offices is located in room 536, 1717 H Street, NW., Washington, D.C. The meetings of the members are usually held in the Main Interior Building, approximately once a month. All regular meetings are open to the public, except for an executive session at the end. A public comment period is provided at the beginning of each meeting. Actions of the ESSA are taken by consensus or, if necessary, a simple majority vote. Members are kept informed of matters by periodic mailings from the ESSA office, and an agenda and materials for action are hand delivered to ESSA members before the meeting. All mailing and deliveries are also made to offices of the Interior Department responsible for management authority activities.

With respect to general operational matters, the ESSA has published an interim charter on July 11, 1977, and recently has proposed procedural regulations on July 11, 1979 that would codify a framework for undertaking the responsibilities listed below. The procedural regulations would primarily adopt previously established ESSA policies.

Under the CITES, we have several responsibilities. The CITES protects three categories of species. First are those species of animals and plants that are threatened with extinction and which are or may be affected by trade. These species are listed in appendix I of the CITES, and trade in them may only be authorized in exceptional circumstances. Second are those species not necessarily now threatened with extinction, but which may become so unless trade in them is subject to strict regulation. These species are listed in appendix II of the CITES, along with any other species whose trade needs to be regulated to insure effective control of trade in the threatened or potentially threatened species. Third are those species that any party to the CITES conserves within its jurisdiction and has identified as needing the cooperation of other parties to control trade. These species are listed in appendix III of the CITES.

Except for several important exceptions spelled out in the CITES, permits are required for trade in appendix I and II species. These permits may not be issued by the Fish and Wildlife Service until it has determined that certain requirements have been met and, in addition, the ESSA has advised it of certain findings: (1) export permits may not be issued for appendix I or II specimens unless the ESSA finds that the export will not be detrimental to the survival of the species; (2) permits may not be issued to "introduce from the sea" appendix I or II specimens unless the ESSA finds such actions will not be detrimental to the survival of the species and, for appendix I, that the recipient is suitably equipped to house and care for living specimens; (3) permits may not be issued to import appendix I specimens from other countries unless the ESSA finds that the import will be for purposes which are not detrimental to the survival of the species involved and that the recipient of a living specimen is suitably equipped to house and care for it.

In the area of permit applications, ESSA findings may be dispositive. Although the Fish and Wildlife Service may withhold permits

on grounds independent of ESSA findings, these permits may not be issued unless the ESSA has made the findings stated above. Because of these binding effects, the ESSA has carefully developed procedures for public input and clarity in our decisionmaking process.

APPENDIX I IMPORTS

The ESSA has established a policy on the meaning of "purposes which are not detrimental to the survival of the species involved." This finding is required for appendix I imports. That policy, published on August 22, 1977, states that a finding in favor of import will be made when the import is for an essential scientific use not detrimental to the survival of the species or to enhance the propagation or survival of the species.

A finding in favor of import of salvaged specimens will be made for any bona fide scientific use, provided that the possibility of import neither directly nor indirectly contributes to the specimens' death or removal from the wild.

Imports for other purposes will be disallowed if they can be reasonably expected to stimulate demand for wild plants or animals, or their parts or products, unless the evidence establishes that import is in the best interest of the species.

APPENDIX II EXPORTS

Findings on appendix II exports take a large share of the ESSA's time, primarily general findings on bobcat, lynx, river otter, wolf, brown bear, American ginseng and, most recently, the American alligator. Export findings are often made on a case-by-case basis; however, under certain circumstances, the ESSA has made general findings for a class of permits. Such findings are intended to avoid unnecessary paperwork and delay.

General findings are usually made when: (1) Information upon which the determination must be based is of such of nature that it is unlikely to be developed in the course of material submitted with any particular application; (2) the volume of trade in the species in question is significant; (3) it would be administratively convenient to have the advice formulated on the basis of a class of permits rather than on a permit-by-permit basis.

We have made general findings through a notice and comment procedure. Proposed and final findings are published in the Federal Register. When general findings are made, the ESSA does not review individual permit applications subject to the findings, leaving it to the Fish and Wildlife Service to insure that permit issuance conforms to ESSA findings and any associated conditions.

Species included in the appendixes to control trade in other species: A detailed treatment of these species is provided below in discussion of our alligator proposals. In general, we have proposed in our procedural regulations and elsewhere to make findings on detriment for these species with respect to the effect that trade may have on those species these were listed to protect.

APPENDIXES OF SPECIES

The ESSA has a major role in the development of U.S. proposals to amend the CITES appendixes and in the development of U.S. positions on the proposals of other parties. On January 25, 1979, we recommended to the Fish and Wildlife Service that the United States should propose three species of primates and seven species of cactus for appendix I. Our recommendations included documentation in the format used for proposals.

The ESSA was not operational at the time of the first conference of the CITES parties in 1976, but we took the lead in developing U.S. positions on the proposals of other parties for the second conference in Costa Rica this past March. We anticipate that this practice will continue in the future, subject to refinement through additional joint procedures of the ESSA and the U.S. Fish and Wildlife Service.

GENERAL CITES POLICIES

Besides findings on permit applications and changes in the appendixes of species, many issues have arisen under the CITES. Some are scientific in nature—for example, the definition of “bred in captivity”—some are not scientific—for example, the financing of the secretariat—and some issues are difficult to characterize in this manner. The ESSA has worked with the Department of the Interior and with other agencies to develop sound policies on these issues, particularly the more scientific in nature. In the case of some—for example, the definition of “bred in captivity” and the treatment of hybrid specimens—we developed policies that were eventually adopted by the parties to the CITES at the Costa Rica meeting. We are developing procedures with the U.S. Fish and Wildlife Service to clarify our roles in these more general matters.

MISCELLANEOUS CITES RESPONSIBILITIES

The ESSA has several additional specific responsibilities under the CITES. For example, scientific authorities are to advise management authorities on the disposition of specimens confiscated because of trade violations. Other specific responsibilities have evolved through resolutions of the conference of the CITES parties—for example, our advice on scientific exchange.

Besides these CITES matters, the Scientific Authority has additional responsibilities. The ESSA is involved with various activities to simplify, standardize and make more effective Federal controls on trade in wild animals and plants. This involvement is specified in section 4 of Executive Order 11911. In addition, we have contributed to several broad U.S. initiatives in international wildlife conservation.

In the area of trade, we are preparing a report for publication in the late fall. We intend to summarize all imports of wild animals and their products in the calendar year 1977, excluding fish. We are excluding fish only because there are too many documents to look at, not because we mean to be prejudicial. We also intend to collect and analyze information on trade in several key groups of animals and plants. We anticipate that this may be the first in a

series of trade reports from the ESSA, giving the Federal Government a better data base for decisionmaking in this area.

We have also provided the Fish and Wildlife Service with detailed advice on several important proposals concerning wildlife trade. For example, we have submitted detailed comments on draft proposed regulations to implement Executive Order 11987 on exotic organisms, and we have studied and commented on proposed regulations to require wildlife export declarations and to license persons engaged in the wildlife import-export business.

Apart from trade, we participated in the development of the U.S. position on the Bonn Convention on the Conservation of Migratory Species of Wild Animals, and we recently assisted in the negotiation of that Convention in Bonn. We also have assisted the Fish and Wildlife Service with its Public Law 480 projects in Egypt and India.

Moving on specifically to the American alligator, effective June 28, 1979, the American alligator was transferred in status from CITES appendix I, which prohibits trade for primarily commercial purposes, to appendix II, which allows carefully regulated commercial international trade. However, appendix II status is no guarantee that exports will be approved, with or without restrictive conditions. Before the U.S. Fish and Wildlife Service may issue export permits for specimens of appendix II species, that agency, serving as the U.S. Management Authority for the CITES, must be satisfied that specimens were legally obtained. In addition, the ESSA must make a finding that exports will not be detrimental to the survival of the species.

The ESSA published proposed findings on May 31 for exports of American alligator harvested on or after June 28, providing a 60-day period for written comments. This proposal was preceded by an advance notice published on April 30. Both of these documents were mailed to the heads of all State fish and wildlife agencies, and many other organizations and individuals. A public hearing on the proposal was held by the ESSA on July 10, 1979.

The ESSA has limited the present proposed findings to hides taken after June 27, 1979. We have asked the Fish and Wildlife Service to first determine whether it is prepared to issue export permits for hides taken while the species was on appendix I and was protected from international commercial trade. If the Fish and Wildlife Service notifies us that it is prepared to issue these permits, the ESSA will propose findings on export of hides taken prior to June 28, 1979.

The CITES provides for the listing of species in appendix II for two purposes: Because the species may become threatened with extinction unless trade in specimens of the species is subject to regulation—that is article II(2)(a)—or because trade in specimens of a species must be subject to regulation in order to control trade in other threatened or potentially threatened species—that is article II(2)(b). The second category includes species that may not be under any shadow of threat to survival, but trade in them may threaten other species, either because of similarity of appearance or for other reasons.

Because crocodilian species are similar in appearance, endangered look-alike species could enter world trade as American alliga-

tors unless positive identification were made of authentic American alligator and its parts and products. In addition, care must be taken that commercialization of nonendangered crocodilians does not promote or sustain commercialization of endangered species.

Article IV(4) of the CITES does not distinguish on its face between those species included in appendix II because of some measure of threat to their own survival—II(2)(a)—and those species included in order to protect other species—II(2)(b). Article IV(2) simply says that, “an export permit shall only be granted when . . . a scientific authority of the state of export has advised that such export will not be detrimental to the survival of that species.” However, it does not make any sense to base approval of export of a species on its own biological status when it was listed to protect other species, and it makes good sense to evaluate the potential effect of export on the species meant to be protected. The ESSA has interpreted article IV(2) so that permit findings on detriment are made with reference to the species meant to be protected, whether it is the traded species itself under II(2)(a), other species that may be affected under II(2)(b), or both, as is the case for the American alligator.

This critically important interpretation has been considered for over a year. The ESSA formally recommended the policy to the Fish and Wildlife Service on August 31, 1978, after extensive deliberation within our body. After extensive discussion in several public and interagency meetings, the Fish and Wildlife Service adopted the interpretation as a U.S. position for the second meeting of the conference of the CITES parties, held at San Jose, Costa Rica in March 1979. This interpretation was accepted by the parties and the need to state the purpose of listing was embodied in one of the conference documents.

In the case of the American alligator, the Fish and Wildlife Service has made its position very clear. In its notice of final determinations of U.S. proposals to amend the appendixes, the Fish and Wildlife Service stated:

The Service has determined to support the proposal to transfer the alligator from Appendix I to Appendix II, and to seek agreement by the parties that it be included in Appendix II both because it may become threatened with extinction unless trade is regulated and because trade in it must be regulated in order to effectively control trade in other listed species.

Following the March 1979 meeting in Costa Rica, the Fish and Wildlife Service published a notice of decisions by party nations on proposals to amend the CITES appendixes. This notice indicated that the American alligator would be transferred to appendix II effective June 28, 1979, for the purpose of controlling trade in other crocodilian species as well as to protect American alligators.

On this point, the Service notice states:

The United States obtained agreement from the parties that official recognition of the basis for listing was important. It serves as guidance to scientific authorities in making their findings on whether or not trade is detrimental to the survival of the species. If a species is listed for purposes of control, such findings would be made in terms of the effect that trade in the control species would have on other species included because of threat.

As you can see, the concept of two-pronged findings by scientific authorities has been developed carefully by the ESSA and the Fish and Wildlife Service over the past year.

In our May 31 notice, we proposed to find in favor of 1979 alligator exports under both article II(2)(a) and article II(2)(b). The proposed approval under article II(2)(a) is based upon evidence of cautious management and healthy populations of alligators in Florida and Louisiana, documented in the May 31 notice.

The heart of the obvious controversy over our export proposal concerns the three conditions on our proposed finding under article II(2)(b) that export of American alligators will not be detrimental to the survival of other crocodilians included in the CITES appendices. These conditions were proposed because available trade data alone did not appear to give adequate assurance that trade in specimens of American alligators will not adversely impact other crocodilians. The three conditions are as follows:

One, foreign buyers, tanners and fabricators must be subject to U.S. licensing requirements similar to those currently in force within the United States. Two, prior to export, all hides must be indelibly marked over their entire reverse surface with identifying symbols. Three, exports must be allowed only to licensed buyers, tanners, or fabricators located in countries which have ratified CITES and which have not taken reservations against CITES controls on trade in endangered species of crocodilians.

Condition one would complement regulations approved July 13 by the Fish and Wildlife Service for proposal under the Endangered Species Act. The Fish and Wildlife Service system would require licensees to keep records of all transactions in American alligators, to be available for inspection by U.S. agents; to sell to other buyers, tanners, and fabricators only if these are licensed; and, in the case of fabricators, to require an "alligator" label on fabricated products. In addition, licensees would be required to designate an agent in the United States that would be available for service of process.

This licensing requirement should be a substantial disincentive to foreign import of alligator hides exported illegally from the United States. The relatively few major foreign processors probably would find it difficult to openly import smuggled hides without a license to import. Once licensed, these importers would be held accountable for American alligator hides bought and sold. A limitation of licensing is that records may not represent actual transactions.

Licensing should also help to prevent the commingling of American alligator hides with the hides of endangered crocodilians, particularly with respect to re-export back into the United States. Alligator products are among the more desirable crocodilian hide products, partly because the hide is suitable for fabrication and partly because alligator has been a popular item, at least in the United States. As a result, there may be an economic incentive to label other crocodilian hides as alligator, both for re-export to the United States and to other countries. The licensing requirement would enable us to keep track of alligator exports to licensees and subsequent reimports. It may also help to insure that other crocodi-

lian products are not labeled as alligator and sent to other countries besides the United States.

Condition two would be a tangible reinforcement of the licensing requirement. This condition would require, prior to export, indelible marking of all hides over their entire reverse surface with identifying symbols. Such a marking requirement could facilitate identification of legally exported alligator hides and products at the time of export and in subsequent commerce. Hide marking could be particularly useful when small pieces are involved, as in watchbands. Unlike licensing and recordkeeping, the presence or absence of marks could be verified immediately by port inspectors.

There are several difficulties with such a marking requirement that we must explore in consultation with the U.S. Fish and Wildlife Service before making a final determination on this condition. Hides must be partially tanned before marking. Only one or, at most, a few processors in the United States apparently are capable of such marking at this time, and their quality of product may not meet international standards. In addition, the inner surface of hides apparently is typically shaved by foreign fabricators to make certain products, and for other products the inner surface might be lined.

Condition three is more general than conditions one and two, and is more directly related to the effect of trade practice on endangered crocodilians, rather than related to technical aspects of enforcement. This condition would limit alligator exports to licensed buyers, tanners or fabricators located in countries which have ratified the CITES and which have not taken reservations for any crocodilians.

Although the majority of the 52 CITES parties have not reserved for any crocodilians, the major crocodilian processing countries either have taken reservations for endangered appendix I crocodilians—France and the Federal Republic of Germany—or are not parties, as Italy and Japan. The commercial importation of appendix I crocodilian species, in contravention of CITES requirements for parties, may be detrimental to the survival of these species.

American alligator exports apparently would contribute only a small number of hides to the crocodilian market relative to the global supply. Nevertheless, access to American alligator hides is of sufficient economic interest to the French crocodilian industry, which is the largest of any country, to lead that industry to actively seek a supply of alligators. Allowing export of American alligator hides to non-CITES parties or CITES parties with reservations for crocodilians may promote or at least contribute to the maintenance of industries whose practices are potentially detrimental to the survival of other crocodilians.

In addition to the observations above, these particular nonparties to the CITES and parties with reservations are the most likely sites for commingling of hides from endangered crocodilian species with skins of American alligators. Although formal adherence to the CITES is no guarantee that a country will live up to the spirit and letter of that treaty, adhering nations have at least committed themselves to the obligations of that agreement, including record-keeping, and have opened themselves to the view of the conference of the parties and the secretariat.

It may interest this committee that the International Union for the Conservation of Nature and Natural Resources, which serves as the CITES international secretariat, supports the restriction of alligator exports to CITES parties without reservations for crocodilians, as well as supports the other ESSA proposals.

Mr. Chairman, it should be emphasized that these findings and conditions have only been proposed. We are in the process of carefully evaluating comment upon them, and we intend to work closely with the Fish and Wildlife Service to insure the closest coordination possible in our endeavors on this matter. In particular, we will strive to give the Fish and Wildlife Service maximum flexibility in determining how to fulfill any conditions that we may require for export. Also, we are carefully evaluating, in consultation with the Service, whether some alternative form of these conditions may provide equal or greater protection to other crocodilians, but be more closely tailored to the particular circumstances at hand.

We will carefully consider the merits of making export findings on a more specific basis than the one we have proposed. For example, findings on detriment might be made with respect to exports to individual crocodilian processors overseas. This approach would focus most acutely on the potentially harmful practices of these companies.

In any event, we are working closely with the Fish and Wildlife Service; we have a great deal of joint progress already, and I am personally committed to developing a final position that all the ESSA members and the Fish and Wildlife Service can support.

This concludes my testimony, Mr. Chairman. I would be pleased to respond to any questions that you or the committee members may have.

Mr. BREAU. Thank you, Mr. Brown. Do any other members of ESSA have any formal statement they would like to make, or would they like to just answer questions?

[No response.]

Mr. BREAU. For the record, I would like each one of the members of ESSA to give me your particular background of expertise in endangered species and tell me what role your department plays in the regulation of trade in endangered species.

Dr. HELD. Yes, sir, Mr. Chairman, if you would like me to begin, I am Dr. Joe Held from the Department of Health, Education and Welfare. As far as my own personal background, basically I am a biologist. I have my doctorate in veterinary medicine.

Our Department has a great deal of concern, particularly in relation to nonhuman primate species. These have been essential for much of the biomedical research that we conduct, and also for the testing of various pharmaceuticals and in the testing of agents for medical purposes.

I might add, incidentally, that we do have an interagency primate steering committee for which our Department is the lead agency. It has representation from a wide variety of governmental agencies which use or need primates, or have concern with primates in their programs. I happen to be chairman of that committee at this time.

Therefore, my expertise is primarily around the primate area and has been concerned with the importation of those species. That

is primarily the area of concern with our Department. However, of course, I recognize that being a more broadly based biologist, I also have the general scientific responsibility that is inherent in membership on the ESSA.

Mr. BREAUX. Thank you. Mr. Callahan?

Dr. CALLAHAN. I am Dr. James T. Callahan of the National Science Foundation. My regular appointment of employment at the National Science Foundation is in the program called ecosystem studies. I have a doctorate from the University of Georgia in zoology and ecology, and have experience in population biological research.

The National Science Foundation has an interest in the total sweep of regulations that apply to all species of plants and animals, in that the scientific community served by the National Science Foundation, particularly through the biological science disciplines and programs, perform research upon various members of the plant and animal kingdoms and regard the species that comprise those kingdoms as being the grist for their scientific mill, so to speak. They are items of basic scientific inquiry.

Mr. BREAUX. OK. Mr. O'Connor, you are wearing two hats today.

Mr. O'CONNOR. Yes, Mr. Chairman, thank you. I am a biologist and have been with the Department of the Interior for 16 years. I have managed seven National Wildlife Refuges during the course of my career and I currently serve as the Acting Associate Director for Federal Assistance.

The Department of the Interior, of course, is the principal agency responsible for the implementation of both the Endangered Species Act and the convention, and therefore is very committed to their success.

We have responsibilities, as you know, for the management authority and the chairmanship of the scientific authority, and we are committed to a good working relationship between these two agencies.

Mr. BREAUX. Mr. Miller?

Dr. MILLER. Thank you, Mr. Chairman. My name is Robert V. Miller. I have training in wildlife management; a masters degree from the University of Arkansas, and my doctorate from Cornell in vertebrate zoology, primarily in the field of ichthyology.

I have been with the National Marine Fisheries Service for almost 14 years; the last 8 years here working on the marine mammals and endangered species programs of the National Marine Fisheries Service. We have been involved in implementation of the Marine Mammal Protection Act and the Endangered Species Act.

Mr. BREAUX. Dr. Brown?

Dr. BROWN. Mr. Chairman, I have undergraduate and masters degrees in biology and a Ph. D. in zoology from the University of Hawaii, where I was a fellow of the National Science Foundation and lived in a cave for a couple of years and studied seabirds. After that, I taught biology at Mount Holyoke College for a year, teaching courses in field zoology and ecology and evolution.

After that, I went to the Harvard Law School, where I graduated from, and then served as a consultant in endangered species to the Fish and Wildlife Service for a period of time, and since then have held this job. Thank you.

Mr. BREAU. Dr. Ayensu?

Dr. AYENSU. Mr. Chairman, I am Dr. Edward Ayensu. I got my Ph. D. from the University of London. I am a biologist by training and I study plant and animal relations. I have held the job of Director of Endangered Species at the Smithsonian for quite a few years, and recently I was made the Director of the Office of Biological Conservation.

If you recall, a few years back when you were putting the Endangered Species Act together, Congress asked the Smithsonian to prepare the list of endangered and threatened plant species for your consideration, and I was the one who was saddled with the job of producing the document for you, so we have a little bit of experience in this area.

My office is particularly designed to insure that we supply to ESSA and to Interior and other agencies and private organizations that may be interested, purely scientific data, with materials backing them, so that you can make your laws with some meat behind them. This is really the major thrust of the activities of my office.

Thank you.

Mr. BREAU. Thank you. Dr. Escherich?

Dr. ESCHERICH. I am Peter Escherich, staff zoologist for the ESSA. I have a biology undergraduate degree from Dartmouth College, and a doctorate in zoology from—

Mr. BREAU. Excuse me, I do not want to interrupt you. You are not a member of ESSA, as such?

Dr. ESCHERICH. No, I am not.

Mr. BREAU. I just wanted to get the official members and their backgrounds. I thank all of you; I think it has been excellent information.

Dr. Brown, I guess you are going to act as the spokesman, since you had the statement. Is that correct?

Dr. BROWN. Yes, Mr. Chairman.

Mr. BREAU. Article IV(2)(a) of CITES provides that the Scientific Authority, of the state of export, should advise whether the export will be detrimental to the survival of that species. Article IV(2)(b) of CITES provides that a species can be listed on appendix II in order to effectively control other appendix II species.

Would you explain to the committee how it is that ESSA has decided to restrict the export of appendix II species in order to affect an appendix I species?

Dr. BROWN. Certainly. This is a fundamental basis for the proposal we have issued on American alligators. It is an issue which we have considered for some period of time. Although the—

Mr. BREAU. I am sorry; let me stop you at that point. You said you have considered it for a long period of time. It is my understanding that the only way that ESSA is brought into the picture is by a proposal from the Management Authority to comment on a specific export permit. Is that correct?

Dr. BROWN. Well, it is correct that the way in which we had developed this relates to the basic requirement that we advise the Management Authority that export will not be detrimental to the survival of the species before they issue export permits.

So, in fact, it is true that what we are doing in this area relates directly to findings on individual permits. However, from the begin-

ning of our operation, or close to the beginning, for certain species which are traded in large volume, and especially those species that the export applicant will not know much about, like bobcats, we have established general findings which apply to the individual export permits. Once those findings are made, we do not actually review the individual export applications.

Mr. BREAUX. Well, what authority do you have to do studies, or whatever you have been doing, prior to the time that the Management Authority specifically requests your input into the biological health and condition of a species on which they are giving you an export permit to review?

Dr. BROWN. Basically, the implied reasonable authority, to the extent we can gather the data that will be relevant to the decisions in order to—

Mr. BREAUX. You apparently are involved, you say, in looking at this issue prior to the time that the Management Authority sent over a complete application file for a permit to export appendix II alligators. I am wondering why you are involved in that prior to the time you get an export permit application submitted to you for comment by the Management Authority.

Dr. BROWN. Well, the basic reason is to try to minimize any delay or burden on the applicant that would export—to try to anticipate—

Mr. BREAUX. You are looking at ways to speed up applications even prior to the time you get an application?

Dr. BROWN. Basically, that is right. In fact, my sense is that the CITES would be extremely hard to operate if we did otherwise. The bobcat is a good example which we have had more experience with than the alligators. We found we were able to evaluate the data available on the bobcat from different States, through public notice and comment, and make general findings approving export from certain States.

What that means specifically is, we advise the Management Authority that export of any bobcats taken, say, in the State of California, pursuant to their management plan during a certain year, 1977-78, will not be detrimental to their survival. You need not send us any applications for export from California of bobcat in that year.

That way, it saves the time period, where they would get the application—

Mr. BREAUX. I do not know if I follow it all completely. It looks like you would have enough work to do with pending applications to determine the biological effect on that particular application, rather than doing work on applications that you had not even received yet, but go ahead back to the specific question about the regulation of an appendix II species because it might affect an appendix I species.

Dr. BROWN. Right. What I meant to say through my opening statement was, we have thought about that for some period of time, because it is true that on its face the article IV no-detriment finding refers to a specimen of that species.

One reading "that" in isolation could certainly read the article to refer only to the species being exported. However, we also were aware that species were included on appendix II for two different

purposes. One purpose is to protect that species itself, and it seems to follow that any regulation of trade in that species would then be made with reference to the possible detriment that the trade may have on that species itself.

But species are also included in appendix II in order to protect other species, and it made sense to us that judgments on detriment for these should be made only with reference to the species that the exported one was listed to protect.

Mr. BREAUX. Let me ask you—on page 12 of your statement you talk about what you are talking about right now. Article II(a), you say, provides for the listing of species in appendix II for two purposes, because the species may become threatened with extinction unless trade in specimens of the species is subject to regulation, or because trade in specimens of a species must be subject to regulation in order to control trade in other threatened or potentially threatened species.

Apparently, you are referring to the second category for the justification. But what you are saying in your statement is not really what article II(b) really says. You say “in other threatened or potentially threatened species.” That is not what article II(b) says, “other species which must be subject to regulation in order that trade in specimens of certain species referred to in subparagraph (a) of this paragraph may be brought under effective control.”

There is a specific reference to subparagraph (a). Do you not agree with that?

Dr. BROWN. I think that is another case where there is some tension between the stated language and an interpretation which would further the purposes of the CITES. In fact, you are right; there is another interpretation involved there.

Mr. BREAUX. How can you have any other interpretation other than the fact that article II(b) says, “trade in specimens of certain species referred to in subparagraph (a) of this paragraph”? How can you go further than “subparagraph (a) of this paragraph” and come up with the legal conclusion that you have the authority to do that?

Dr. BROWN. Basically, two bases. One is specific, in that the Berne criteria for addition of species to appendix I does provide for annotation of those species listed because of problems with similarity in appearance. So although there is—

Mr. BREAUX. That is appendix I?

Dr. BROWN. Yes.

Mr. BREAUX. OK.

Dr. BROWN. In other words, there is a recognition by the parties that species can be included for look alike purposes; not only appendix II species, as the literal reading of that paragraph might suggest, but also appendix I species look alikes can be subject to regulation as well.

Mr. BREAUX. In order to accomplish that, do you not think the treaty would have to be changed? If the language in the treaty does not do what you think it should do, should not the treaty be changed?

Dr. BROWN. I do not believe it is necessary, Mr. Chairman.

Mr. BREAUX. No, not if you follow your decision to interpret it as you see fit.

Dr. BROWN. Well, certainly, lawyers can argue on both sides of the coin easily. But I believe that authority for the interpretation is supported not only by the Scientific Authority, but by the Fish and Wildlife Service and the Solicitor's Office of Interior.

As you know, there is precedent, particularly with respect to treaties and international agreements, for considerable flexibility on the part of the Executive in implementing those treaties.

Mr. BREAUX. That is interesting.

Dr. BROWN. Well, laying aside the question of the interest that Congress has in this, which, of course—

Mr. BREAUX. You should not lay that aside, but go ahead.

Dr. BROWN. I am laying it aside because it is paramount, and the Congress, as you know and as we know, can do what it wants with this convention as a matter of policy. But laying that aside and addressing solely the legal question, the courts have given executive agencies a good deal of discretion in implementing treaties, more so than domestic statutes.

In addition, the courts, both with treaties and domestic statutes, as you know, have been rather taken to executive discretion when the executive agency is implementing a treaty or a statute in a way that seems to further its policy and in a way that seems to make sense out of provisions which are not—

Mr. BREAUX. You are using the words "seem to make sense" and "seem to do this." I can agree that there are a lot of statutes that I think should be written in a way to do something better than they are doing. But the fact is that they are not written that way.

To put an interpretation which clearly exceeds the very specific statement in this case, in a treaty which says you can regulate an appendix II species because it looks like another species in appendix II listed in subparagraph (a) of this paragraph—it is most specific; it could not be written any more specific to say that that is what the intent of the Convention says.

Dr. BROWN. And yet the purpose for controlling trade in appendix II lookalikes is in order to protect other appendix II species, which is stated in that paragraph and which, incidentally, applies to the other crocodilians which are all in appendix II. It applies *a fortiori* to those species on appendix I.

Mr. BREAUX. English again, for the dumb chairman.

Dr. BROWN. All the more.

Mr. BREAUX. OK.

Dr. BROWN. I think, really, the best response I have to that, Mr. Chairman, is that as a lawyer, I am content with that interpretation. And as the Scientific Authority's Executive Secretary making recommendations to the body; I am comfortable with that interpretation as a proper assertion of policy.

Mr. BREAUX. Policy, yes; maybe the policy should be that.

Dr. BROWN. Policy within the limited sphere of the Scientific Authority.

Mr. BREAUX. It does not seem to be too limited with that interpretation. I would like for the committee to have the benefit of the Solicitor's. Do you have one? You referred to it.

Dr. BROWN. The Solicitor General or the Office of the Solicitor?

Mr. BREAUX. The Office of the Solicitor.

Dr. BROWN. I can arrange to have one provided. There is not a written opinion on it, but they have been supportive.

Mr. BREAUX. There is not a written opinion?

Dr. BROWN. I am sure I can get—

Mr. BREAUX. Why is there not a written opinion justifying your exceeding what I think to be the clear parameters of the Convention? Did you ask for a Solicitor's opinion?

Dr. BROWN. No, and the reason I did not was because neither I nor, I suppose, they felt that the issue was close enough that it required an opinion. But if the Chair would like, we certainly—

Mr. BREAUX. This is something that, certainly, at the very least—even you would argue that it is open for legal debate.

Dr. BROWN. Yes.

Mr. BREAUX. Why was not a Solicitor's opinion asked for on the position of the department on whether you could do what you did?

Dr. BROWN. Simply because when I have asked them informally, they have concurred. In the press of time, they being tied up with all kinds of other legal problems with the Endangered Species Act and other laws, we have requested formal opinions only when it is critical.

Mr. BREAUX. Well, my question, for which you really, I do not think, have an answer is, why did you not ask for that.

Mr. Young?

Mr. YOUNG. Mr. Chairman, along that line, if you are going to ask for the Solicitor's opinion, I want to know the individual that writes the opinion, because I know the Solicitor's Office and there are certain individuals down there that I do not agree with at all. I want an objective opinion.

Mr. BREAUX. We are going to get back to this article IV(2)(a) and article II(2)(b) later. Let me continue with your statement. On page 12, I started off saying that I did not think your statement was correct. On page 12, the second paragraph under "Separate Findings," that really is not what article II(b) says. I do not even think that that is a close paraphrase of article II(b). Do you think it is?

Dr. BROWN. I think it states the meaning of II(b). Could you tell me what specifically you have a problem with?

Mr. BREAUX. Yes. Let me read article II(b) and see what similarity you see between your interpretation of it and what the actual words are. Article II(b) says, "other species which must be subject to regulation in order that trade in specimens or certain species referred to in subparagraph (a) of this paragraph may be brought under effective control."

Dr. BROWN. Right.

Mr. BREAUX. You are adding things here. You are saying the second category includes species that may not be under any shadow of threat to survival, but trade in them may threaten other species. You are apparently referring to other species not in appendix II, and that is not what article II(b) says.

Dr. BROWN. Well, we are going back to the previous discussion. I agree with you that II(2)(b) refers to paragraph II(2)(a); that is in black and white. It is necessary to interpret II(2)(b) as applying to appendix I species. I feel comfortable, as a lawyer, doing it.

It seems implied in II(2)(b) that the listing of species pursuant to that article—in order to bring other species under “effective control”—is meant to prevent them from becoming threatened or more threatened, and that is what the reference here is for.

We have tried to find a way to link the no-detriment finding under article IV to this, to try to make a consistent, sensible interpretation for the treaty at large.

Mr. BREAUX. You have jurisdiction or authority to assess the biological condition of a species that there is an export permit pending for. Do you think that your jurisdiction also covers trying to envision ways which would, in your opinion, produce regulations which you think are the theory or the intent behind the convention?

Is your authority not limited to the biological condition of a species that is the subject of an export permit?

Dr. BROWN. No, I do not believe so. I believe we have the authority to take into account the effect that export of a species in article II, which was listed to protect another species, would have on the other species.

In other words, one thing to be evaluated is the effect that export of the species from the United States would have on the other—

Mr. BREAUX. Is your interpretation of the extended authority to regulate an appendix I species shared by Mr. O'Connor, the Chairman of ESSA?

Mr. O'CONNOR. Mr. Chairman, I think that we agree with the general principle, but I think there is a question as to whether it is more appropriately a management function to be carried out by the Management Authority, or a scientific or biological function to be carried out by the ESSA.

Mr. BREAUX. Why did you abstain from voting on the final submission of the ESSA proposal?

Mr. O'CONNOR. Primarily because we believed that much of the substance of the regulations fell within the prerogatives of the MA, and that they were proposed without adequate consultation.

Mr. BREAUX. Is it your opinion that the particulars of the proposal by ESSA should have been made by the Management Authority, or what? I am not trying to put words in your mouth; I am just trying to understand it.

Mr. O'CONNOR. Well, I think it should have been drafted in consultation with the Management Authority and the MA should have concurred with the procedure before it was proposed.

Mr. BREAUX. How many consultation meetings did ESSA have with the Management Authority in arriving at the proposal?

Dr. BROWN. Well, a number of steps were taken. Prior to the publication of the advance notice on April 30, we sent a copy of the notice in draft to the Fish and Wildlife Service, as well as to all members of the ESSA.

Mr. BREAUX. How much prior to the publication?

Dr. BROWN. That was about a week before. We discussed the advance notice at our meeting which was held in April, and discussed the conditions of limiting exports to CITES parties, and of marking, at that time.

Mr. BREAUX. This is the alligator proposal?

Dr. BROWN. The proposal referred to the alligator and other species.

Mr. BREAUX. How about the alligator proposal that I am looking at here?

Dr. BROWN. This is part of what one, I think, fairly should regard as consultation, in that we discussed limiting exports of alligators and some other species, but especially alligators, to CITES parties, and the marking, in some detail at that meeting in April.

We then subsequently prepared a proposed finding on the alligator, specifically. It is true that we were somewhat late, because we had a hard time getting it all together in one coherent package. But we sent it to all the members of the Scientific Authority and to the Fish and Wildlife Service on a Thursday before a Tuesday meeting.

Mr. BREAUX. Does not the alligator proposal, as an example, contain what I would have to very generously term management mechanisms for regulating the export of them?

Dr. BROWN. It does, and that is a point which I think is worth exploring here, and one that I think we—

Mr. BREAUX. Let us explore it in this way before you get started. What authority does ESSA have, anywhere in the legislation and Executive order, that says ESSA can make management proposals, particularly without consulting with the Management Authority before you make the proposal?

Dr. BROWN. Well, it is not true that we did not consult. Whether we consulted enough is a subject of debate between, I suppose—

Mr. BREAUX. OK, let us get into that. When you sent the alligator proposal to the Management Authority on Thursday for publication on Tuesday of the following week—

Dr. BROWN. For discussion and adoption or not.

Mr. BREAUX. OK. Was that the first time that the Management Authority had seen the proposal to prohibit the export of alligators to countries that had signed with reservation?

Dr. BROWN. It was the first time that the Management Authority was aware that I was going to specifically recommend that. It was not the first time that we had discussed the issue.

Mr. YOUNG. Mr. Chairman?

Mr. BREAUX. Mr. Young?

Mr. YOUNG. When did the Management Authority receive the proposal?

Dr. BROWN. On the Thursday before the Tuesday.

Mr. YOUNG. You sent it on Tuesday, and knowing the postal system, they may not have gotten it until Monday or Tuesday morning, and probably Wednesday.

Dr. BROWN. We never mail things that are that critical; we have them hand delivered.

Mr. YOUNG. They hand delivered it?

Dr. BROWN. Yes.

Mr. YOUNG. They received it early enough to have Thursday and Friday, at least, to look at it?

Dr. BROWN. It was in the afternoon on Thursday, so it means—

Mr. O'CONNOR. If I may comment, Mr. Chairman?

Mr. YOUNG. That is all I am asking for.

Mr. O'CONNOR. I first became aware of that specific proposal at the close of business on Thursday. I had been out of the office for a good share of that day, so it was not until I returned about 4 in the afternoon that I first saw it.

Mr. BREAU. You are chairman of this thing.

Mr. O'CONNOR. That is correct.

Mr. BREAU. And the first time you heard of the proposal was the day it was to be submitted to the Management Authority?

Mr. O'CONNOR. That is correct.

Mr. BREAU. Where had you been?

Mr. O'CONNOR. It was not the first time I was aware of what they were doing, but the first time I saw the specifics of the proposal, Mr. Chairman, particularly with regard to nonparty nations and party countries with reservations on crocodilians. Those two elements, I had not seen specifically until that afternoon.

Mr. BREAU. It had already been sent to the Management Authority.

Mr. O'CONNOR. Sir?

Mr. BREAU. Apparently, it had already been sent to the Management Authority before the Chairman of the ESSA group saw it.

Dr. BROWN. At the same time.

Mr. O'CONNOR. Yes, at the same time.

Mr. BREAU. It is nice that you learned about it at the same time it was sent to that other agency.

Mr. YOUNG. What we are saying is that Dr. Brown made the recommendation, Thursday prior to the Tuesday meeting, not only at the full board here, but also to the Management Authority.

Mr. BREAU. Each one of the members sitting around here has a vote. What was your involvement in the specifics of the alligator decision with regard to prohibiting exports to countries which had signed the CITES with reservations? Let us start from the left. Dr. Held?

Dr. HELD. Mr. Chairman, I was not at the meeting which preceded the development of that proposal. A substitute was there for me and I was not directly involved. My comment, though, is that it is my understanding that this is still a proposal and that there will still be time for us to consider the testimony that is developed before us as to whether or not we want to accept this as a final recommendation.

Mr. BREAU. Dr. Callahan?

Dr. CALLAHAN. I was at the meeting, and I understood the proposal as presented. I commented on it freely and voiced my endorsement.

Mr. BREAU. All right. Mr. O'Connor, what was your involvement in recommending it?

Mr. O'CONNOR. It was rather limited, Mr. Chairman. We had several meetings at Interior after I received the proposal. I was not at the ESSA meeting that particular day and there was an acting chairman present. We instructed him that there were so many provisions that we had not had a chance to explore adequately, that he was not to support that particular proposal.

Mr. BREAU. Dr. Miller?

Dr. MILLER. I received the documents that were hand carried, I believe, Thursday afternoon. I went over them and understood

them. We met and discussed them at some length at our meeting the following Tuesday and it was subsequently voted on.

Mr. BREAU. The first day you saw them was on Thursday?

Dr. MILLER. I believe so; I believe that is right.

Mr. BREAU. That is the day they were sent to the Management Authority?

Dr. MILLER. Yes.

Mr. BREAU. All right. Doctor?

Dr. AYENSU. Mr. Chairman, I am afraid I was out of the country at that time.

Mr. BREAU. OK. So one was not at the meeting and one was out of the country; one saw them the day they were sent out, and another one saw them the day they went out.

Dr. BROWN. It is worth adding, Mr. Chairman, that the member from the Smithsonian Institution, Dr. David Challinor, was at the meeting and did concur, as well.

Mr. BREAU. When was the first time he saw the proposal?

Dr. BROWN. For everyone, it should have been Thursday; we had them hand carried to all the members.

Mr. BREAU. What I am saying is, I take it that not many of you were really involved with the formulation of the proposal. You saw it for the first time on the day it went out, and some of you were not even there, is that correct? Does anyone have anything different from that?

Dr. CALLAHAN. Mr. Chairman, may I interject something here?

Mr. BREAU. Sure, yes.

Dr. CALLAHAN. The conduct of the meeting in which these proposed regulations were adopted for publication, I think was an exemplary conducted ESSA meeting.

Mr. BREAU. I am sure it was; I hope so.

Dr. CALLAHAN. The discussion of the regulations was quite substantive. As a matter of fact, the proposed regulations, as presented by the ESSA staff via the Executive Secretary, were commented upon freely and, as a matter of fact, were amended in some fashions through the discussion at that meeting.

Mr. BREAU. I am sure they were.

Dr. CALLAHAN. There was intense interaction.

Mr. BREAU. What discussion took place at that meeting regarding the economic impact of not exporting alligators to nonsignatory nations, or those who had signed with reservation? I would like to hear your recount of that discussion.

Dr. CALLAHAN. I recall specifically that in the economic sphere there was some discussion held about the capability of the American tanning industry to handle the domestic end of that process. It was drawn out in those discussions that the American tanning industry perhaps had some shortcomings.

Mr. BREAU. That is clear. I am talking about the economic impact on the nonsignatory nations of CITES, or those that signed with reservations.

Dr. CALLAHAN. I do not recall that there was a discussion of the economic impact on CITES signatories with reservations or nonsignatories to CITES.

Mr. BREUX. What percentage of alligator hides are used in the trade of countries such as France and West Germany, as opposed to crocodile hides?

Dr. CALLAHAN. Given the statistics that relate to the total proportion of U.S. alligator hides in the international marketplace and pinning that at one-half of 1 percent of the world market in crocodilian hides, I think it is logical to extend those statistics to say that the proportional representation of American alligator hides in France or any other major processor of those hides into fabricated products would be very small.

Mr. BREUX. OK. Is it your opinion that a prohibition of one-half of 1 percent of a total product is going to have any effect on the other 98 or 99 percent of user crocodile hides? Theoretically, the reason why you are preventing the export of alligator hides to these countries that have signed with reservations is because we want to protect an appendix I species, the crocodile.

Do you think preventing one-half of 1 percent of crocodilian hides going to those countries is going to have any effect whatsoever on their dealing with crocodiles? And if so, how? What is the economic basis for that judgment?

Dr. CALLAHAN. I would say that is difficult to determine and I have a reasonably good background in systems science, and from that background I can say that small quantities of materials in highly integrated systems can exert tremendous controlling functions over major sectors of that system.

Mr. BREUX. OK. I take it that no one on the panel itself are economists or trade experts. Maybe the Commerce Department might, but I think he is more or less a marine biologist. What economic evidence was considered in the meeting to justify the conclusion that the elimination of one-half of 1 percent would have an effect on the use of crocodiles?

Dr. CALLAHAN. I recall none.

Mr. BREUX. Mr. Brown?

Dr. BROWN. We are in the process of trying to develop as much data relevant to that issue we can before we make a final decision. There are certain things that are worth observing. The first is that, although the American alligator hides by rough estimate only amount to a half a percent of the total number of hides in the trade, the alligator hides are, on the average, worth more, perhaps considerably more, than the average hide in trade.

A lot of the very large bulk of what is moving around the world is caiman which is bony and is not worth as much. The second observation is that, at least at this time, the major import market for alligators apparently is France.

Perhaps the appropriate things to compare are the number of alligators that might go to France as against the total number of crocodilians that go there, or more appropriately the value of the alligator hides going to France as compared with the value of the other hides. Even more appropriately, the value of alligator imports may be balanced against the value of the appendix I endangered crocodilians imported. These are interesting questions. We are trying to find the answers.

I am not sure we should balance the value of these imports, but we certainly want to get as much data as possible, and the Congress might want to take a look at the matter.

Our proposed condition to restrict exports to CITES parties might influence importers. Presumably, a crucial question for the country would be the value of alligator imports weighed against the value of appendix I crocodilian imports.

Mr. BREAUX. What information do you have from Japan, for instance, on our plans to support the fact that a loss of a potential one-half of 1 percent of a more valuable hide would have on their particular operation?

Dr. BROWN. Little at this time. We are trying to get it. We did find out this morning, for example——

Mr. BREAUX. Do you not think it might have been a good idea to have it before you made the proposal rather than make the proposal and then try and justify it?

Dr. BROWN. We are not trying to justify the proposal. I have a feeling that the scientific authorities view on proposals is somewhat different than might have been perceived.

Mr. BREAUX. OK. You made a very major decision which I think is a management decision that you had no authority to make, but be that as it may, you made it. And now you are saying, and the premise is, that by not exporting alligator hides to these countries that you are somehow going to protect the condition of the crocodiles or help to protect their condition. Yet at that time when you made the proposal, you had no information from either of these countries as to what the potential effect would be or what the potential use of the alligator hide was for those countries.

Dr. BROWN. We wanted to obtain comment on whether it is appropriate for us to determine that export of American alligators is not detrimental to other crocodilians when the alligators are going to markets which are importing other crocodilians which are endangered.

Mr. BREAUX. What is wrong with the theory that I thought was a little commonsense theory that if a country importing could accept legally taken alligator hides that might somehow slightly diminish their use of illegal crocodilian hides? You use the reverse judgment. You say that that is going to encourage the use of crocodile hides.

Dr. BROWN. And we do not really know the answer to that. It is a good question.

Mr. BREAUX. That is another one you do not know. I have asked question after question for which you have either not got the supporting documentation or which you have not had the advice of these gentlemen who sit on your board because they were not at the meeting, out of the country or did not get the proposal until it had already been sent out. It looks like you are doing all of this now or you plan to do it. This is after the fact.

Dr. BROWN. No, it is not after the fact.

Mr. BREAUX. OK. Let me ask you then if it is not after the fact. You do not have any information from France or Japan, do you?

Dr. BROWN. We got some this morning that was interesting.

Mr. BREAUX. Yes. When was the proposal made?

Dr. BROWN. On May 31.

Mr. BREAUX. That is after the fact.

Dr. BROWN. No. After the fact is after the close of the comment period, not before that.

Mr. BREAUX. You should have had the information before you make a major announcement in the Federal Register.

Dr. BROWN. The reason why we went ahead and did that as early as possible is again to try to get data and make a final decision as soon as we could to accommodate the desires of the States of Florida and Louisiana to have an expeditious decision.

Mr. YOUNG. Mr. Chairman?

Mr. BREAUX. Congressman Young?

Mr. YOUNG. I hate to interrupt this crocodile conversation here, but it will give you a chance to collect some of your thoughts. And I appreciate your train of thought, by the way. I think what I have seen here today deeply disturbs me. Nobody on this panel made any decision other than Dr. Brown.

I am just going to ask some overall questions. Just how much time do each one of you individuals spend on this commission a month? You have one meeting a month; that is what the testimony was. How much time do you spend on it? Go right down the line.

Dr. HELD. I would say an average, first of all, each month participating in a meeting that lasts approximately half a day.

Mr. YOUNG. I mean, prior to the meeting.

Dr. HELD. Prior to the meeting, reviewing the documents that come, I probably spend a total of 8 hours a month.

Mr. YOUNG. Eight hours. How about you?

Dr. CALLAHAN. I think my estimate of total time commitment would be in the range of 16 to 20 hours a month, most of which, in fact, is done on my own time out of the office, because the press of other business at the office does not allow everything to be done there.

Mr. O'CONNOR. Approximately 3 days but that does include administrative duties which, naturally, I am expected to perform as chairman.

Mr. MILLER. I would guess about 3 days, worth of my time.

Mr. AYENSU. When papers come to me, it takes roughly about 2 to 3 days, depending on the volume of what I have.

Mr. YOUNG. I appreciate that. The thing I am worried about—I have seen how these commissions are set up. It amounts to the executive director making most of the policy decisions, and that bothers me to some degree, because you are supposed to be collecting the scientific material, economic material, and be listening to other people's involvement which leads me to the next question which I want to ask Dr. Brown, Mr. Chairman, if I can.

We have had our meetings before, Dr. Brown. They have been very amiable. As you well know, you and I do not agree on this whole program. I like to protect endangered species, not other things.

But there is a great deal of discussion as you know in Alaska why the lynx and otter are included on the CITES convention appendix when these species are not endangered in this country, and in fact, are closely monitored by the State of Alaska and the Fish and Wildlife Department of the United States.

Would you explain to us why the U.S. delegation to the CITES convention did not push for the removal of these species?

Dr. BROWN. I can at least explain to you why the scientific authority did not recommend that to the management authority. There were four species that were——

Mr. YOUNG. I am asking for two species.

Dr. BROWN. We did not believe that there were enough data available at this time on the population status of the species to meet the Berne criteria for deletion from the appendix.

Mr. YOUNG. Dr. Brown, with all due respect now, just how much data have you got from the State fish and game department?

Dr. BROWN. Well, you know, it is not the sort of thing that you put on a scale and weigh.

Mr. YOUNG. Wait a minute now. Just how much did you receive from them?

Dr. BROWN. I would say they did a very thorough, professional job.

Mr. YOUNG. And the professional job was done by biologists within the field.

Dr. BROWN. True.

Mr. YOUNG. And what did you base your rejection on when there is no counter argument? What more information do you want? Do you want us to go out and tag each lynx and report that there is Mabel and Sally and John and all of the kiddies around? What do you really need? That is what I am looking for.

Dr. BROWN. We never have asked or expected any State to have a precise population estimate for these species.

Mr. YOUNG. I am asking you a question. What has not the State of Alaska—there is no way any scientist in this country can prove that there is any endangered species of lynx in the State of Alaska.

Dr. BROWN. For example, we just received a letter from the State of Alaska in response to our request for information which stated that the State of Alaska did not monitor the current populations of river otter or lynx, and they had no harvest level objective, as I recall, either.

Mr. YOUNG. Now, a point of information. That harvest level is available. They tag every pelt. They know where they are sold. They have a license, and they report it. Now, that information is available. Did they supply that to you?

Dr. BROWN. No.

Mr. YOUNG. They did not supply any of that information?

Dr. BROWN. They have written us. We received a letter recently and said that they are not monitoring the population levels nor are they directing their harvest at a level.

Mr. YOUNG. I would like to see a copy of that letter and who sent it.

Dr. BROWN. I would be delighted. It was the gentlemen that replaced Bob Rausch.

Mr. YOUNG. I want to see when it was sent, and I want to see a copy of it. Now, you work with the State department of fish and game in Alaska then?

Dr. BROWN. Yes.

Mr. YOUNG. You have a close relationship with them?

Dr. BROWN. I have talked frequently with Ron Skoog and Bob Rausch. Now that Rausch is gone, I have not talked with his successor.

Mr. YOUNG. Have you talked to any of the fur buyers in Seattle—

Dr. BROWN. Yes.

Mr. YOUNG. (continuing). And any of the trappers? Did you ask any of the trappers for any correspondence?

Dr. BROWN. I corresponded with a number of the trappers.

Mr. YOUNG. And what is their comments?

Dr. BROWN. They seem to resist any interference, and they see us as interfering.

Mr. YOUNG. Dr. Brown, can you legally and scientifically say, in your own mind, that you believe there is a shortage of lynx in Alaska?

Dr. BROWN. No, I do not believe that.

Mr. YOUNG. Then why did not CITES push for the removal of the species?

Dr. BROWN. Because the quality of data with respect to their population status was lower than we felt was required under the criteria, unlike, for example, the Alaskan brown bear and the Alaskan wolf which we have advised should only be listed to control trade in other species. Our position was accepted by the parties and this year we are not reviewing the status of those two species at all in the United States. We have supported this position because we believe that the quality of data on those species together with the control of the state justified position.

Mr. YOUNG. Well, Dr. Brown, you know, and we have had our discussions, if I thought for a second the lynx were endangered, and I say this sincerely, and I think my trapping friends would also agree with me, because it is part of their livelihood, I would agree that harvest should be further controlled. I do not want us to continue to base this upon an assumption of a theory.

I do not know what other information we can provide to you. That is our problem. I mean, you tell us what you want that is within reason as far as—you know, as I say, I cannot monitor Tom, Dick and Harry and all the kiddies, but you give us what you want, and then give us an answer.

Dr. BROWN. Certainly information on, reliable information on population trends.

Mr. YOUNG. On reliable information, what are you going to consider reliable?

Dr. BROWN. There really are a variety of ways to get at it.

Mr. YOUNG. A trend takes 7 years. That is a trend. That is the cyclic effect of a lynx.

Dr. BROWN. They are cyclic.

Mr. YOUNG. A 7-year cycle. What I am worried about, and as you well know, we cannot afford to wait 7 years, because either we are going to lose the peak of the cycle or that information is going to be down, and there will not be any cash income either. And I am not convinced that by not trapping that you will not really put the species at a detriment.

Dr. BROWN. Mr. Young, of course, you recognize that we have not prohibited the export of lynx through our findings.

Mr. YOUNG. Well, that brings me up to my last question. It seems to me in your recent notice for proposed export quotas lynx were not listed. Is there a reason? Are you going to allow us to export our lynx or is there some reason why it was left out?

Dr. BROWN. Well, at the time we published that notice, we had not received any report at all from the State of Alaska, as we had requested. That was true for a number of states. Since then we have received a report. It is unfortunate that the report said Alaska was not monitoring population levels, but that is something we will have to give careful consideration to during this comment period.

Mr. YOUNG. I would appreciate it because, as you well know, our season, frankly, will be starting the 1st of November and it lasts for approximately 2 months or less. It depends on what the conditions are, and they would like to know because the real trapper is endeavoring to plan his program. They have to know, and I am running out of time, because I am saying they are well aware of these regulations or these proposals, and then there is no quota.

Dr. BROWN. I believe we are aiming at a final decision by mid-September.

Mr. YOUNG. Well, that will help out. We will lose some of them. They will already be out in the field and they will not be back, but we can try to communicate to them.

If I thought, again, if those species were endangered, I would be right with you, but the fact is this year they are going to be better than ever. We are going on the up-spring anyway.

Thank you, Mr. Chairman.

Mr. BREAU. Thank you, Mr. Young.

Dr. Brown, on paragraph 4 of the memorandum of understanding between the management authority and ESSA, paragraph 4 basically says, "Based on the data gathered and evaluated pursuant to the procedures referred to above," meaning the first three paragraphs of the memorandum of understanding, "ESSA will formulate general advice to the management authority."

Now, on the proposed regulations which, I take it, went to the management authority, you have a number of proposals which say that foreign buyers, tanners, and fabricators must be subject to licensing requirements similar to those that are in force in the United States. You say that exports must only be allowed to licensed buyers, tanners or fabricators located in countries which have ratified the convention and which have not taken reservations for any crocodilians. You continue further saying prior to export all hides must be indelibly marked over their entire reverse surface with identifying symbols.

Do you consider that coming under the terminology of general advice? It sounds very, very specific; very detailed to the chairman. Is that general advice?

Dr. BROWN. It is an area that we are going to have to work out very carefully with the Fish and Wildlife Service.

Mr. BREAU. Were you cognizant of the general statement saying you are supposed to formulate general advice?

Dr. BROWN. Yes, of course, and let me continue. The paragraph 4 of this memorandum continues to say that if the ESSA establishes conditions on a finding of no detriment, these conditions such as

state of origin, season or amount of export will be limited to those essential for positive finding and will leave to the management authority, the particular means by which the conditions are fulfilled.

Mr. BREAU. But are they not referring to biological conditions at that point, though, than economic decisions on trade?

Dr. BROWN. Well, the conditions are conditions that the scientific authority believe are essential in order to determine that export is not detrimental. This memorandum of understanding was based upon only the II 2(a) approach. Since this memorandum, we, with support from the Fish and Wildlife Service, have proceeded to consider no detriment findings with respect to the effect of export on another species.

Mr. BREAU. But your proposal was made on II 2(a) of CITES, is it not?

Dr. BROWN. It was made under both II 2(a) and II 2(b).

Mr. BREAU. But you are still under the parameters of formulating general advice.

Dr. BROWN. Within this general framework, I agree with that. The question becomes what is a general condition. A state of origin or season or amount of exports which are the things listed here as those kinds of conditions are general but they are very specific. They do not dictate a detailed management regimen; to do that I think, would stretch this MOU. However, those conditions are specific. The amount of export could be a specific number, and the Fish and Wildlife Service has no objection, as I understand it, to us saying that exports would not be detrimental, say, if from the State of Wyoming the number—

Mr. BREAU. What possibly could be left for the management authority to do, from a management standpoint, after receiving your proposal?

Dr. BROWN. To work with the States to develop a system of management which insures that exports actually do not exceed that number.

Mr. BREAU. In other words, you are saying that after you make the management decisions, they should enforce it.

Dr. BROWN. Well, I think this distinction between management and science is very tenuous. I think it is kind of like substance and procedure. The scientific authority may be able to find that export is not detrimental only by establishing conditions on that finding. Those conditions could relate to biology or management. But through this MOU, working with the Fish and Wildlife Service, our understanding is that those conditions should be as simple and as basic as possible and leave as much of the management aspects, like enforcing a limited number of exports, to the Fish and Wildlife Service.

Mr. YOUNG. Excuse me, Mr. Chairman.

Mr. BREAU. Yes.

Mr. YOUNG. Just for the information of the committee, I just talked to the State fish and game department in Alaska, and the letter which they supposedly have sent to you they say there is impossibility to monitor lynx because of the vastness in the size of the State, but they are monitoring the harvest which is all that is required by ESSA.

They have filled out one very long and lengthy questionnaire which has been sent to you, and they have also filled out and given to you all the information they have accumulated since statehood on the harvesting of lynx.

The question I asked them what more do you think they need. And they said, "We do not know. No further evidence has been asked for." I go back to my question, again, Dr. Brown. If we are basing your findings on assumptions and nonscientific facts and your judgment is not sound, then I think we have to, again, question that judgment, because I just had them on the phone, and again, I hope you recognize the size of my State, how, again, we can find out from Harry, Helen, and the kiddies how is the monitoring.

Dr. BROWN. Yes, we do recognize the size of the State of Alaska as being important in our determinations, and it has played a very important role in the past where we have had little data on populations.

Mr. BREAUX. The Chair will observe that we have the second bell of a recorded vote, two votes. So the committee will be in recess. We would like to ask the panel to come back at 2 to complete our questioning. The committee will be in recess until 2 p.m.

[Whereupon, a short recess was taken.]

Mr. BREAUX. Will the meeting be in order?

Dr. Brown, in the ESSA meeting on June 29 this year where this proposal this was agreed to, there was an issue that was raised concerning the possibility or feasibility of restricting the exports of bobcat, lynx, and river otters to only CITES countries that signed the convention. The decision was made not to do that, and there was some discussion about the question of whether ESSA had authority to restrict the export of any of these species to CITES countries solely.

And I would like for you to explain how you can come to the conclusion that you have the authority to do it with a species such as the alligator but not have the authority to do such with bobcat, lynx and river otters.

Dr. BROWN. The distinction that at least the ESSA staff and I have made between the alligator and those other species is not so much a question of our authority but the identification of a problem. Whereas the major importers of crocodilians and the major potential importers of alligators are non-CITES parties or CITES parties with reservations, the opposite is the case for these other species. Most are imported into CITES parties without reservations for those species.

My staff and I believed that there simply was not a problem with respect to the nations importing, say, bobcats, having industries that were further endangering other cats, and the same with the other species.

What we did finally was to propose options to be considered, but the distinction was not so much a matter of authority. It was a matter of needs.

Mr. BREAUX. Was there any discussion about the authority? Was there any reservations about maybe not having the authority to do such?

Dr. BROWN. I am trying to recall. I believe there may have been a comment. There was not a question raised within the ESSA of our authority, as I recall. It is possible that it was raised by a representative of the Fish and Wildlife Service who was there.

The Fish and Wildlife Service has questioned not so much the basic authority but whether it is proper for the scientific authority to make a blanket condition with respect to CITES parties, as opposed to perhaps looking more specifically at the practices of individual firms who might be importing.

Within the Government, at least within the executive branch, there seems to be support without exception for the scientific authority to, at least, consider the practices of individual importers of alligators and, if necessary, perhaps these other species as well.

Mr. BREAU. As a biologist sitting on the panel, who do you, or as executive secretary of the committee or any of its members, consult with regarding getting expert information with regard to trade in these species? And who did you consult with in making the decision with regard to the alligator, specifically?

Dr. BROWN. With the States, with the States of Florida and Louisiana, with the Fouke Fur Co. and a number of the garment manufacturers in the Northeast who are interested, as well.

Mr. BREAU. The garment manufacturers?

Dr. BROWN. Yes. There is a group of individuals who are interested in the use of reptilian products as part of the garment industry in the Northeast. There is a woman, Claire Hagen, from New York whom we spoke with, who is interested in this.

Mr. BREAU. Where did you get your information as to how effective a prohibition of the export of these species to France and Japan, the effect that it would have on those individual countries?

Dr. BROWN. We really have no information on the effect on Japan. I did consult with Pierre Grawitz of Gordon Choisey at my office before we did all of this, who, as you probably know, is of the impression that it was unnecessary.

Mr. BREAU. OK. From the trade standpoint?

Dr. BROWN. Well, we also did consult with the IUCN fairly extensively, which is the International Union for the Conservation of Nature, and they serve as secretariat for the CITES and gather information worldwide.

Mr. BREAU. From the trade industry from the foreign countries that are affected, did any of them support the decision to restrict the export of alligators, either the States or Grawitz's organization that you mentioned? Did anyone in the trade say, "Hey, that is going to have a real positive effect"?

Dr. BROWN. The supporters, other than some environmental groups in the United States that I believe may be testifying—

Mr. BREAU. They are testifying after you.

Dr. BROWN [continuing]. Were the CITES secretariat itself which is a gatherer of trade information, which has telegraphed us and indicated that they supported all of the proposals.

Mr. BREAU. That is a part of CITES.

Dr. BROWN. That is a part of CITES. That is true.

Mr. BREAU. I am talking about outside in the trade. I mean, the environmental groups will be testifying next, and you have some support there. From the people who are affected, theoretically, by

the proposal directly, that is, by their business, either the import business, Japan and France, or through the export business, the States of Florida and Louisiana, or anybody involved from the business standpoint, did you get any support and if so, from whom?

Dr. BROWN. No support, to my knowledge, from those overseas. Gordon Choisy's Pierre Grawitz representing them, was not supportive of the CITES restriction. Within the United States, there was support from the Fouke Fur Co. which testified at the hearing we had on July 10.

Mr. BREAU. Where are they located?

Dr. BROWN. Greenville, S.C.

Mr. BREAU. What do they do with regard to alligators?

Dr. BROWN. They have a vested economic interest in the tanning of alligator hides in the United States.

Mr. BREAU. It would help their business if we could not export them anywhere else, would it not?

Dr. BROWN. It would. In addition, Claire Hagen, although she has not replied in writing yet—we are still in suspense as to whether the New York garment manufacturers will take a formal position.

Mr. BREAU. Has anyone within ESSA sat down with the government officials of France and discussed this as to the effect it would have on their actions?

Dr. BROWN. I sat down with the delegate to the migratory species convention from France and talked with him briefly about this, but he was not prepared to give any response. He thought that the proposal was interesting and said he would go back and talk with people in his government.

Mr. BREAU. As chairman of this committee, I have done that. I have sat down with people of their department which regulates the trade in France, with the Government of France, and they have told me what they think the effect is.

No one on ESSA has an opinion from any of those other nations?

Dr. BROWN. I did sit down with this individual. I did give him a copy of our notice and said that any information they had that was relevant to that would be very much appreciated and useful.

Mr. BREAU. What contact did you have with the State Department as far as the proposal?

Dr. BROWN. I sent a copy of the proposal to the legal advisor's office and asked them for any comment.

Mr. BREAU. And what was their response?

Dr. BROWN. They have not made one. Informally, they have said that it seems acceptable. But I am waiting on a response. We did have one additional individual who testified on July 10 on behalf of the local tanneries within the United States, a man named Steven Newman of Steven Newman Tanneries, Inc., of Newark, N.J., who was another one of those who had an economic interest in the training of crocodilians, and he felt we should not export the alligators.

Mr. BREAU. What does he do?

Dr. BROWN. He owns a tannery, and he wants to keep the hides here.

Mr. BREAU. Where is his tannery located?

Dr. BROWN. It is in Newark, N.J. He apparently is tanning hides for Pierre Grawitz.

Mr. BREAU. Do you have any problem with the fact that the convention apparently allows a country to sign with reservations as to particular species that the convention covers?

Dr. BROWN. That is a matter of law, and I accept it. It is rather conventional, as I understand. I certainly personally wish they would not, but that practice is not unusual, and I accept it fully, and it is really not up to me to decide, whether I like it or not.

Mr. BREAU. How much of a role did the fact that your proposal with regard to ESSA prohibiting the export of hides to countries which had signed the treaty with reservation, how much of a role did the fact that maybe this would somehow entice them into signing without reservation plan in the decision?

Dr. BROWN. I tried to keep it from being an issue in at least my recommendation because I do think the scientific authority has to be careful about not involving itself into what is essentially a diplomatic standoff to try to achieve our desires by something we do here.

Mr. BREAU. Was that subject discussed in the meetings?

Dr. BROWN. It did come up, and I presented my recommendation as discussed in the testimony. The principal reason to me personally is that when we make a determination that exports of alligators is not detrimental to the survival of other crocodilians, I do believe we should not contribute to industries which are using endangered crocodilians to their detriment. However, I am not sure that this is in the final analysis what the scientific authority will agree to.

Mr. BREAU. Is that a biological decision to do so because you might be helping another species? Is that a biological decision on the alligators conditions?

Dr. BROWN. It is a mixed decision of biology and economics. It is based on the observation that their use of the endangered crocodilians could or is, in fact, detrimental to them, but it also—

Mr. BREAU. Are you saying that the use of the endangered crocodilian is to the detriment of an alligator?

Dr. BROWN. No. The determination is based on two horns, one of which is biological and one is economic.

Mr. BREAU. OK. Do you have authority to make economic recommendations, in your opinion? And if so, where does it come from authoritywise?

Dr. BROWN. What our authority and obligation is is to advise the Interior Department—

Mr. BREAU. To advise the Management Authority.

Dr. BROWN. Well, the Secretary of the Interior is the Management Authority under Executive Order 11911. To advise them that export will not be detrimental to the survival of the species, in light of our interpretation of articles II 2(a) and II 2(b). The management authority is required to have that advice before it issues export permits.

So what we are obligated to do, as I understand it, is to go through a factfinding process to determine whether we can give that advice. Any kinds of information that are relevant to giving that advice are within our purview as I understand it. If there are certain conditions that we feel are essential to giving that advice, and without those conditions we cannot make such a finding, then those conditions also are within our purview.

We all recognize that there is an interface between the management authority and the scientific authority, which is not immediately resolvable. It is something that we do need to work out, and it is going to take time, and it is not fully worked out right now.

Mr. BREUX. How do they interface when they get the memorandum 2 days before the meeting, 2 working days before the meeting? What kind of interface is that?

Dr. BROWN. As I pointed out, we had a meeting in April when we discussed an advance notice of proposed rulemaking. We discussed the CITES limitation and the marking on alligators, and a representative of the Department of the Interior was there. And we talked about it a long time.

Mr. BREUX. But that is vastly different from what a proposal is with regard to the specifics of tagging, restricting it to licensed exporters, restricting to countries, et cetera.

Dr. BROWN. No, I do not agree with that. We had discussed the CITES limitation and the marking. The licensing system I had discussed in detail with Fish and Wildlife along the way, and that is what they either have already proposed or plan to propose.

I agree that system is rather detailed. I would not have recommended that the scientific authority propose that condition out of the blue except that I had intended for us to dovetail our condition with the Interior Department, and to do so, I felt it was desirable for us to have comment on what was to be their proposal.

The tagging was fait accompli, something that the States had already planned to do, and we were basically adopting what was planned already.

Mr. BREUX. Let us talk about your concerns about the look-alike problem between the crocodile and the alligator. Would you consider, and if so, what, alternatives other than eliminating the export of appendix II species, the alligator, to these countries as a means of solving the look-alike problem? What other specific alternatives did you consider to solve that particular concern?

Dr. BROWN. Both the licensing of buyers, tanners, and fabricators, and the marketing of the hides which were the other conditions.

Mr. BREUX. Why would those alternatives work in the countries you are prohibiting the export to?

Dr. BROWN. They might.

Mr. BREUX. Why would they accept it as opposed to absolute total prohibition?

Dr. BROWN. They were accepted as conditions that should be proposed, but there are deficiencies with each of them. Recordkeeping may not be adequate under the licensing, and the marking of the inside of the hides in conjunction certainly adds a lot, but it does not address the broader question of whether exporting alligators may help sustain industries that are using crocodiles to their detriment. The scientific authority is not committed to finalizing those three conditions. But what it was committed to doing was to obtaining the fullest possible public comment on those possibilities, which were all worthy of comment, and worthy of the focused kind of comment you get when you have proposed to do something.

Mr. BREUX. Would your position or recommendation be any different if someone could present to you a system whereby the

alligator hide that is exported from the United States could be followed through the whole chain and be verified that this is indeed an alligator product and not a crocodilian product? Would you then still recommend a rule whereby you could not export those hides to countries which had signed only with reservations, and if so, what would be the basis for the ruling at that time?

Dr. BROWN. Well, if the Chair will give me some leave, since we are in a comment period, I feel I have to be a little bit subdued about saying what I would recommend in the end or not. If it were clear that the alligators would be fully traceable through some system, which might be the licensing system, that would suggest that the marking on the inside of the hides may not be as necessary as it might have appeared and it may not contribute that much to whether system that the scientific authority may require in order to make our no-detriment finding.

The CITES party question is slightly more complex in that it does raise the issue of whether you are going to export alligators and contribute to the profits of the industries that are importing endangered crocodilians.

I do not believe that the scientific authority has ever taken the position that we would necessarily adopt that principle; in addition, another element—

Mr. BREAUX. Let me ask you about considering whether the export of a legally taken alligator hide in Louisiana or Florida, whether that contributes to a nonsignatory's economic benefit from dealing in crocodilian, how does that affect the alligator at all?

Dr. BROWN. It does not. The finding is made with respect to the effect alligator exports may have on other crocodiles, the II2(b) finding.

Mr. BREAUX. Well, we differ with the premise that you have authority to do that in the first place.

Dr. BROWN. The scientific authority has never had a problem with the affect of exports on alligators. We believe that the alligators are well managed in Florida and Louisiana, and we believe that our proposal well substantiates that export would not be detrimental to the alligators.

Let me say another thing, Mr. Chairman. I have been personally working with the Fish and Wildlife Service in the development of their proposed alligator regulations which, I believe, were signed Friday.

Mr. O'CONNOR. Yes, that is correct. They were signed Friday by the Acting Director, and sent to the Federal Register.

Dr. BROWN. What those regulations proposed is the licensing of buyers, tanners, and fabricators overseas with recordkeeping requirements for all crocodilians, with the requirement that alligators not be sold to individuals unless they have that license and that licensees not sell to others unless the others are licensed as well.

The regulations do not propose to limit exports to CITES parties without reservation. They do not propose to require marking before export. But they do propose that the scientific authority would review each license application to determine whether, in its judgment, issuing that license and exports to one holding those licenses would not be detrimental to other crocodilians.

The proposal also, in the alternative, invites the scientific authority to establish general findings with appropriate general conditions as necessary, applicable to the buyers, tanners, and fabricators that might be licensed.

Mr. BREAU. Without getting into the specifics of the proposal, what proposal are you talking about?

Dr. BROWN. This is a proposal of the Fish and Wildlife Service under the Endangered Species Act.

Mr. BREAU. They have a proposal that is different from ESSA's proposal with regard to the same species being exported?

Dr. BROWN. That is correct. They are not proposing what we have proposed as conditions. They have invited us to go along with a system which would not automatically limit the types of parties to that reservation.

Mr. BREAU. Which one is going to be in effect? I have got people in my district and throughout the United States who are watching ESSA's proposal which would prohibit the export, and you are telling me that Fish and Wildlife has a proposal which would allow the export to these countries. What kind of a smooth running operation are we having here?

Let me ask the representative of Fish and Wildlife. Why are you proposing regulations which say they can export alligators? I am all for it. But why are they doing it when these are presently pending and open for comment?

Mr. O'CONNOR. Mr. Chairman, we feel that it is the responsibility of the management authority to propose the procedures under which permits and licenses would be issued to permit trade in these alligator products.

Mr. BREAU. I agree with what the philosophy is. But how is it that you can propose your regulations which says something entirely different from ESSA which you happen to be Chairman of? That is totally inconsistent. What is the rationale for having two different proposals pending for public comment?

Can you imagine the confusion of the people back home in the field and of environmental groups to industry groups when you publish conflicting proposals?

Mr. O'CONNOR. Yes. Mr. Chairman, I believe that it is ESSA's responsibility to issue advice to the public on how it will arrive at its findings with regard to detriment. It is the management authority's responsibility, as I see it, to issue regulations, after seeking the advice of the public, on how we will manage the licensing of foreign buyers, tanners, and exporters and issue permits for the export of these products.

Mr. BREAU. They are mutually inconsistent.

Mr. O'CONNOR. That is correct.

Mr. BREAU. How can they operate if both of them become regulations?

Mr. O'CONNOR. We felt that there were things in the ESSA proposal that we could not go along with, and that is one of the reasons that we have been working, since the publication of the ESSA proposal, with the ESSA staff to try to arrive at a procedure which we could both agree with.

As Dr. Brown has indicated, we have worked very hard for the past several weeks to arrive at some mutually acceptable proce-

dures. Bear in mind, however, that until the public record on each of these proposals is closed nothing can be finalized.

Mr. BREAU. I take it that position is concurred in by the head of Fish and Wildlife, Mr. Greenwalt?

Mr. O'CONNOR. Yes, sir. He signed these proposed regulations. That is, the Acting Director signed them on Friday.

Mr. BREAU. Would your regulations allow the export of a legally taken hide in Louisiana or in Florida to be exported to France or Japan?

Mr. O'CONNOR. Yes, sir, providing that the buyer or tanner or fabricator to whom it was to be exported was licensed and had agreed to the conditions that we establish.

Mr. BREAU. Now, Mr. Brown, proposed regulations would not allow that?

Mr. BROWN. That is correct, although what we are proposing to do today is to work out an arrangement that can satisfy the integrity and responsibility of both agencies when these regulations are finalized.

This Fish and Wildlife Service proposal provides not just for the licensing alone, done by the Fish and Wildlife Service, but would have the scientific authority review each license application, if it chooses, to judge whether issuing that license would not be detrimental to other crocodilian.

Mr. BREAU. You license—

Mr. BROWN. Or in lieu of that, if the scientific authority felt it was more functional to establish a general finding, any—

Mr. BREAU. Are you telling me that you are going to do that, according to ESSA authority that if those regulations were adopted that you would then have authority to look at each permit and say, we don't think that is a legitimate permit, because it would operate to the detriment of a totally different species of crocodilian?

Mr. BROWN. That is correct. Although I am prepared to defend that process—

Mr. BREAU. What process?

Mr. BROWN. I can personally support—

Mr. BREAU. The regulations?

Mr. BROWN. Yes, the general lines of the regulations.

Mr. BREAU. They are totally different.

Mr. BROWN. They are not, because although there would not be a limitation to CITES parties without reservations, we would have the ability to review every single application for a license, if we chose to.

Mr. BREAU. But you could come up with the same conclusions you come up with now?

Mr. BROWN. We could, but we would not relate it to the country. We would relate it to the individual practices of the licensee.

Mr. BREAU. But he is not in discussion. He is a licensed alligator hunter in Louisiana.

Mr. BROWN. The licensee might be, for example, Gordon Choisy. These licensees would be those in foreign countries who are buying American alligators from the United States.

Mr. BREAU. What consideration has ESSA given to the question of taking steps for encouraging foreign countries who are not signatories to CITES to take the necessary steps to insure that the

products they are receiving are, in fact, an alligator product, and they are not getting mixed up with crocodilian products?

Have you explored with any of these countries steps they are taking as far as their registry procedures or made suggestions to them how it might be improved in order to remove the prohibition that you are recommending?

Mr. BROWN. Not other than asking the delegate from France to comment at the Bonn meeting, and also Pierre Grawitz. I asked him if he would explain, as best he could, the industry and regulations in France; and as well, if he could help us get a response from the Government.

Mr. BREAU. Have you gotten those responses from Mr. Grawitz or from the country of France as to their tagging procedures and licensing procedures?

Mr. BROWN. No, we have not. An additional element is that the management authority has, after consultation with us, requested from these countries information on their procedures.

I wasn't sure that that had been done, but apparently it has. To my knowledge we have not yet received any response, though.

Mr. BREAU. Suppose we had a Department of the Interior or Fish and Wildlife official who was actually stationed, a herpetologist who was assigned to the various processing plants in France or Japan, or the various countries, West Germany, for example, to act and serve as an inspector, to say, these are the tagged hides from the United States. They are alligator hides.

Follow that through the process to insure that this kind of a look alike problem doesn't occur. Have you considered that as a possible solution to the problem?

Mr. BROWN. I certainly think it contributes a lot to solving the problem. It still does not answer the question of whether exports of alligators to industries which are using endangered crocodilians is not detrimental to them.

But it would go a long way toward resolving the other issues.

Mr. BREAU. It does not resolve that particular concern? Please explain for the committee how the export of a legally taken alligator hide for use in these countries that are signatories with reservation on crocodilians would increase the problems that the crocodilians are having?

My problem is, it would just give those countries another source for hides, the alligator, and they would have to rely less on the illegally taken crocodile. How would you think the opposite of this conclusion is arrived at?

Mr. BROWN. Your observation may be correct. I hope we can find the best answer available to that question as we proceed.

The problem on the other side, however, is the following. I will use a specific example. Maybe it is better.

The French industry would like to import our alligators. It is a small part of their entire crocodilian imports.

Pierre Grawitz of Gordon Choisy, one of the two biggest companies, told me the reason they wanted to import our alligators is to re-export them back to the United States.

They do perceive us as the biggest market. That suggests, although it is far from definitive, that what would happen is that

alligator exports would not contribute to a limited market, but to the expansion of the market.

If so, arguably, that would contribute to the overall operations of Gordon Choisy, which is in the business also of importing, apparently only two of the five appendix 1 crocodilians that France has reserved for—

Mr. BREAUX. But my suggestion that you have an inspector in their plants would tend to eliminate that argument, then?

Mr. BROWN. It would eliminate the argument that there would be mixing of alligators and crocodilians.

Mr. BREAUX. And that is your concern?

Mr. BROWN. Not the sole concern. As I said before, we are talking about—I have some personal feelings on that----

Mr. BREAUX. That is the concern they signed the treaty with reservations with.

Mr. BROWN. The concern is that in determining whether exports of alligators is not detrimental to other crocodilians, one factor we might consider is that alligator exports not contribute to the profit margin of those companies

Mr. BREAUX. What does the profit margin of those bad guys have to do with the biological condition of the alligator in the United States?

Mr. BROWN. Nothing, but it could be harmful to the crocodiles elsewhere.

Mr. BREAUX. Who gave you the theory, what economist told you, gave you the theory that the market would be expanded in that sense?

Mr. BROWN. Actually, no economist. Pierre Grawitz is the only one who has given me that kind of information, although he is probably a good source on that kind of thing.

Mr. BREAUX. You still have this problem with the fact that you could not be absolutely sure that alligators are, in fact, alligator hides, and not being comingled with crocodilian hides, that you still have a problem because, somehow, that might contribute to the economic well-being of the country or the individual.

Mr. BROWN. I still personally have reservations about us exporting alligators----

Mr. BREAUX. To those bad guys.

Mr. BROWN. To those guys, because of the concern about contributing to----

Mr. BREAUX. My problem is not so much your personal concern or mine, but what the law says. If we do not like the law, we could change it. If we do not like the convention, we should ask that it should be changed.

Mr. BROWN. I agree with all of that, but I think this is consistent with the convention

One thing, don't let me mislead you, I am not sure at all that is what the scientific authority would do. I am not positive I would raise it.

I merely raise it now because I don't want to mislead the Chair. Your suggestion about the scientists goes a very long way toward resolving all the other issues. But I don't want to mislead the Chair that I am comfortable with approving exports if that is done.

I have to do a lot of other thinking.

Mr. BREAUX. I am sure these other gentlemen would also be participating, and it would not be something that reflects your personal opinion.

Mr. BROWN. Mr. Chairman, I am sure they would.

Mr. BREAUX. If they are not in on the meetings, and if they do not get the proposal until the day before it is proposed, and not if the management authority does not get it until 1 working day before it is proposed, they do not have an adequate opportunity to participate in the decisionmaking process.

Mr. BROWN. I disagree.

Mr. BREAUX. You think this—one was not here; one was out of the country; one did not get it until the day it was submitted—

Mr. BROWN. The one that wasn't here had an alternate representative. The one out of the country had a full member present.

In fact, every member was represented. There was extensive discussion; a lot of debate.

Mr. BREAUX. The Fish and Wildlife Service representative, the Chairman of ESSA, said he did not—

Mr. BROWN. He got it on Thursday, and the meeting was Tuesday.

Mr. BREAUX. That is adequate participation on a major proposal of that nature?

Mr. BROWN. I think so. I believe that the scientific authority takes its business seriously. These members will not rubberstamp what I do, especially on this issue.

They have seen the concerns of this committee and the concerns of the States, and they are going to do what they think is right.

Mr. BREAUX. I hope they see the concern of Congress.

The gentleman from Louisiana and the gentleman from Florida testified that the proposal that you have made is going to cause some very serious management problems for them back in their respective areas of management authority because, you can bank on it, the alligator hunters and the landowners in Louisiana, and I bet you also in Florida, are also going to look at that critter as a critter who serves no useful economic purpose to their land.

He eats the muskrats. He destroys the population and he destroys the ricefields and a lot of other living creatures that get in his way. You have 8,000 complaints in Florida.

If you remove the economic market for these animals, do you not think you are going to cause some problem biologically for the alligator's regeneration?

Mr. BROWN. We don't know.

Mr. BREAUX. You don't know?

Mr. BROWN. We really don't know. I don't think anyone knows.

Mr. BREAUX. Has anyone said that that loss of an economic incentive is not going to have an effect on the biological condition of the alligator?

Mr. BROWN. The question is not so much whether an economic incentive is useful, but what is happening in the long term with the kinds of restrictions that we might impose.

We have not yet resolved what to do if allowing no export hurt a domestic species but helped those overseas.

Mr. BREAUX. Let me ask you this. You said you have not made that decision.

I will quote from the regulations. They said that export of the alligator, "may be critical to the funding of State alligator conservation programs, may disincline the landowners from destroying the alligator habitat."

Mr. BROWN. We try to be as honest as we can in these proposals.

Mr. BREAUX. What I am saying, this is a quote from your regulations, saying that the export of alligators is—maybe critical to funding, and may disincline landowners from destroying the alligator habitat, which is contrary to what you just said.

Mr. BROWN. Not really.

Mr. BREAUX. Please rationalize the two.

Mr. BROWN. I would be happy to.

There are two important "mays." The State of Louisiana has made that complaint. We felt it was deserving of public comment, so we put it in. It may be true.

And it may also be true—there has been some testimony at the July 10 hearing, for example—that even if there is a permanent market differential for alligators between the United States and overseas, that at most approving export might only temporarily impede the alternative uses of the land.

Second, there was specific testimony by two tanneries that the New York Mason Act, which prohibits the sale of alligators in New York, is likely to be repealed in the next year, and that they intend to bring litigation if it is not repealed.

They have a precedent from when they had struck down a California statute against the sale of alligator products, based upon a claim under the Endangered Species Act. They are seeking a legislative solution in New York.

The industry people, with admittedly an interest in alligator processing in the United States, testified that they were convinced that once New York opened up, the price of alligators here would be as high as overseas.

Steven Newman testified that the highest price ever paid for alligators was paid in the United States for use here.

The scientific authority has tried not to involve itself in those issues, but certainly they have come up. For the chairman, it is relevant information, because it is information that relates to broad policy questions of economics.

Mr. BREAUX. In Costa Rica the United States delegation, I remember, supported a proposition which would exempt certain populations of crocodilians from appendix 1, which would allow their exports.

Doesn't this present much more a serious look alike problem than alligators? Apparently, the reason for the exception was that Papua New Guinea, had a good management program.

It has to be a heck of a lot more of a look alike problem with the Papua New Guinea, crocodilians, than with the alligators versus the crocodilians, and yet it seems the positions are totally in contrast.

Mr. BROWN. Not really. I was speaking for the United States that night, when we supported exemption for the saltwater crocodile population of Papua New Guinea. We did it for one reason. The CITES has definitions of what belongs on appendix 1 and appendix

2. We believed that the information submitted from Papua New Guinea was sufficient for an exemption.

There is nothing to prevent the Government of New Guinea from doing the same thing we propose to do with the alligator. That is, the system could work the way as we are developing it in New Guinea.

Mr. BREAU. The final question, for Mr. O'Connor, would you spell out or recite for the committee, the reasons why you, as Chairman of ESSA, decided to abstain in supporting the proposal?

Mr. O'CONNOR. Yes, sir.

Among other things, we felt that it was not appropriate to have a blanket condition that would exclude consideration, any consideration, of an export to a country just because they were not a member of CITES, or because they had a reservation on a species of crocodiles.

We had no objection to considering these things on a case-by-case basis, but the difference was in the latter, you would be considering them. In the former, they would never have the opportunity to be considered.

Mr. BREAU. Why do we have a management authority, a scientific authority? Couldn't we just have the Fish and Wildlife Service serving as the State's entity to handle both of those functions?

Mr. O'CONNOR. It can be done that way. However, in the Executive order we have alluded to mandates that in this country there will be two separate entities.

Mr. BREAU. I agree. The fact that you are operating under an Executive order that says that.

But with the cooperation that I have seen exhibited on this particular proposal, it seems to me that it had been a barebones minimum, if that. I don't understand if ESSA is going to consider so many things that are management decisions on so many particulars, and bring in all these economic decisions and say everything relates to biology. It really makes it unnecessary to have a management authority which is supposed to consider the same type of factors in making their final recommendation.

Mr. O'CONNOR. One of the most difficult things to do is to draw the line between biological considerations and management considerations.

We in the Fish and Wildlife Service feel that it is a good thing to have these considerations separate, to have a group of scientists look at the biologic questions and render a judgment on them.

Mr. BREAU. I have no problem with that philosophy and theory if it was carried out.

The concern that this member has is, that apparently there is nothing that ESSA would rule out of order in being able to reach a biological recommendation for decision purposes.

You have looked at economic considerations, trade considerations, licensing, tagging, you have looked at the very broad-based management principles and specific management principles, all saying that these things relate to the biology of the critter.

If that is the way ESSA is going to operate, then we don't need a management authority; just lump it all in one.

That is my concern.

Mr. O'CONNOR. I understand your concern.

Mr. BREAU. I don't have any other questions at this time.

We will have an opportunity to submit written questions to ESSA following the hearings. Other members may have questions that they would like submitted for ESSA to respond to.

We appreciate your response in that regard. The committee appreciates your spending most of the day with us. I know you have other items that you are concerned with.

I particularly appreciate that.

With that, this panel will be excused.

We will now go to the second panel, which will consist of John Grandy, the executive vice president of Defenders of Wildlife; Nicole Duplaix, director of TRAFFIC; and I understand also, Milton Kaufman of the Fund for Animals.

The committee is pleased to receive your testimony.

Mr. Grandy, we have you listed on the list first, and if you would like to proceed in that manner.

STATEMENTS OF A PANEL CONSISTING OF JOHN GRANDY, EXECUTIVE VICE PRESIDENT, DEFENDERS OF WILDLIFE; AND NICOLE DUPLAIX, DIRECTOR, TRAFFIC; AND MILTON KAUFMANN, FUND FOR ANIMALS, INC.

Mr. GRANDY. I am John Grandy, executive vice president of the Defenders of Wildlife, a nonprofit organization dedicated to representing the interests of wildlife before the decisionmaking processes of our Government.

In 1972, through an exhaustive series of public meetings, personal contacts and written statements, I participated actively in the drafting of the original Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES).

I was appointed a member of the Secretariat to the February-March 1973 meeting in Washington, D.C., at which the final CITES was negotiated.

As a member of the Secretariat, I was asked to work on behalf of a strong treaty both by the Secretariat and the U.S. delegation to the Conference. Since the original CITES was signed in March of 1973, I have actively followed and encouraged implementation of the treaty.

In October, 1977, I was a member of the U.S. delegation to the Special Working Group of the Parties to CITES, held in Geneva, Switzerland, and in March 1979, I represented Defenders of Wildlife as an observer at the second meeting of the Conference of the Parties held in San Jose, Costa Rica.

To clarify a part of the record, I have a bachelor's degree in forestry and wildlife; a master's degree in wildlife management; a Ph.D. in wildlife ecology.

I have participated on a number of Government task forces, most recently serving as an adviser to the Secretary of the Interior on damage control.

Today I will address my remarks to, one, the ESSA's proposed procedural and interpretative regulations, entitled "General Provisions and the Convention on International Trade in Endangered Species of Wild Fauna and Flora" approved at the ESSA meeting on June 29, 1979, and second, the ESSA's proposed export findings for the 1979 harvest season for American alligator.